

KOVA TERMS & CONDITIONS

KOVA Terms of Use

Last Updated: November 24, 2025

These Terms of Use (this **"Agreement"**) constitute a legally binding contract between you and **KOVA Group, Inc.** (**"KOVA," "Company," "we," "us,"** or **"our"**) governing your access to and use of (i) the Ride KOVA mobile application and related software (the **"KOVA App"**) and (ii) the digital transportation and mobility network operated by the Company (the **"KOVA Network"**).

1. Governing Agreement

1.1 Binding Agreement.

By creating an account, accessing, or using the KOVA App or KOVA Network in any manner—including requesting a ride, providing a ride, or interacting with any services enabled through the App—you acknowledge that you have read, understood, and agree to be bound by all terms of this Agreement.

IF YOU DO NOT AGREE TO THIS AGREEMENT, YOU MAY NOT USE OR ACCESS THE KOVA APP OR THE KOVA NETWORK.

1.2 Updates and Modifications.

KOVA may revise or update this Agreement from time to time. Any modifications will become effective when posted or when communicated to you, unless a later effective date is specified. Your continued use of the KOVA App or KOVA Network after changes are issued constitutes your acceptance of the updated Agreement.

1.3 Contact.

If you have any questions regarding KOVA, this Agreement, or any related policies, you may contact us at:

support@ridekova.com

2. Definitions

For purposes of this Agreement, the following terms have the meanings described below:

2.1 "User"

A **User** is any individual who accesses or uses the KOVA App or KOVA Network. This includes:

- **Riders**, who request, schedule, or receive transportation services;
- **Drivers**, who provide transportation services through the KOVA Network; and
- Individuals who interact with other features of the App, such as purchasing add-on services or participating in business-sponsored rides.

2.2 "Ride" or "Prearranged Ride"

A **Prearranged Ride** means transportation services facilitated through the KOVA App or KOVA Network that:

1. begin when a Driver accepts a Rider's request for transportation through the KOVA App;
2. continue while the Driver transports the Rider(s) in the Driver's vehicle to the requested destination; and
3. end when the Rider, or the last Rider in a shared or multi-passenger scenario, exits the Driver's vehicle.

2.3 "Trip"

A **Trip** refers to:

- any completed Prearranged Ride; or
- any intended Prearranged Ride that is canceled by either a Rider or a Driver prior to completion (including no-shows, cancellations after acceptance, or timeouts).

2.4 "Transaction"

A **Transaction** means any agreement or exchange conducted between Users through the KOVA App or KOVA Network. This may include, but is not limited to:

- Prearranged Rides;
- long-distance transportation bookings;
- airport or intercampus route bookings;

- business-sponsored or subsidized rides; and
- other services or offerings made available through the App.

2.5 "Marks"

Marks means all trademarks, service marks, logos, trade names, trade dress, brand identifiers, design elements, and other branding materials owned, controlled, or used by **KOVA Group, Inc.**, including but not limited to the "KOVA" name, the "KOVA Group, Inc." name, logos, icons, product or service names, slogans, and any other graphical or textual brand elements. All Marks are the exclusive property of **KOVA Group, Inc.** and may not be copied, reproduced, modified, or used in any manner without prior written permission.

3. Eligible Users

3.1 Authority and Capacity.

The KOVA App and KOVA Network may only be used by individuals who have the full legal capacity to enter into this Agreement and who are competent to comply with all of its terms. Users may not permit any other person to access or use their personal KOVA account.

3.2 Minimum Age.

Users must be at least **eighteen (18)** years old to create an account or use the KOVA App or KOVA Network.

3.3 Deactivated Users.

The KOVA App and KOVA Network are not available to any individual whose account has been suspended, restricted, or permanently deactivated by the Company for any reason.

4. Communications from the Company

4.1 Consent to Communications.

You agree that KOVA, its affiliates, and its third-party service partners may contact you using any phone numbers or email addresses you provide to the Company. These communications may include, but are not limited to:

- operational notifications regarding your account or your use of the KOVA App;
- updates regarding new features or service changes;
- messages related to transactions, rides, payment activity, or user support;
- marketing or promotional communications from KOVA or its partners; and
- push notifications or system alerts.

Communications may be sent by automated systems, SMS/text, email, push notifications, or phone calls. Standard carrier messaging rates may apply.

If you change or deactivate a phone number associated with your account, you agree to update your account information promptly to avoid unintended communications to others.

4.2 Opting Out of Promotional Messages.

You may opt out of receiving **promotional** calls, emails, or text messages at any time by following the unsubscribe instructions included in the communication.

You acknowledge that your consent to receive promotional messages is **not a condition** of using the KOVA App or the KOVA Network.

If you opt out of promotional text messages or calls, you will no longer receive such communications unless you subsequently initiate them.

Operational, transactional, or service-related messages may continue, as they are necessary for proper use of the KOVA App and Network.

5. Promotions, Referrals, and Loyalty Programs

KOVA may, at its sole discretion, offer promotions, referral programs, discounts, loyalty programs, or other incentives to Users or prospective Users. The nature, eligibility requirements, duration, and benefits of such programs may vary.

KOVA reserves the right to modify, suspend, or terminate any promotional or referral program at any time, with or without notice.

Referral programs may allow you to earn incentives for inviting new Users to join the KOVA App or KOVA Network, provided that all program conditions are met and subject to any limits set by the Company.

6. Third-Party Services

The KOVA App and KOVA Network may enable Users to access or receive services, products, or offerings provided by independent third-party providers (collectively, **“Third-Party Services”**). Examples may include, without limitation, navigation tools, roadside assistance, merchant-sponsored offers, or other services arranged through or displayed within the KOVA App.

You understand and agree that any Third-Party Services may be subject to separate terms, policies, or pricing established solely by the applicable third-party provider (the **“Third-Party Terms”**). Your relationship with these third parties is governed exclusively by the Third-Party Terms.

KOVA does not endorse, guarantee, or assume responsibility for any Third-Party Services, nor for the actions, omissions, conduct, or performance of any third-party provider. You agree that KOVA shall not be held liable for any damages, losses, disputes, or issues arising out of or relating to Third-Party Services.

7. Intellectual Property

7.1 Ownership and License to Use the KOVA App and Network.

This Agreement grants you a limited license to access and use the KOVA App and KOVA Network consistent with its intended functionality. All intellectual property rights in and to the KOVA App and KOVA Network—including but not limited to all software, features, text, graphics, logos, images, interfaces, and proprietary technology—are owned by or licensed to **KOVA Group, Inc.**

Nothing in this Agreement transfers, assigns, or conveys any ownership rights or intellectual property interests to you. All rights not expressly granted here are reserved by the Company.

7.2 Feedback and User Submissions.

Any questions, comments, suggestions, ideas, feedback, or other information you provide to KOVA (collectively, **“Feedback”**) is considered **non-confidential** and becomes the sole and exclusive property of KOVA upon submission.

KOVA may use, reproduce, modify, adapt, publish, or exploit such Feedback for any purpose, including commercial purposes, without acknowledgment, attribution, or compensation to you.

7.3 Use of KOVA Names and Logos (Brand Elements).

The names, logos, icons, design elements, and other brand identifiers used by KOVA (collectively, the **"KOVA Marks"**) are proprietary to KOVA Technologies, Inc. Some KOVA Marks may be unregistered trademarks or may be pending registration; however, they remain protected under applicable intellectual property and unfair competition laws.

KOVA grants Users a **limited, revocable, non-exclusive, non-transferable** license to display the KOVA Marks solely for the purpose of identifying themselves as Users of the KOVA App or KOVA Network and solely in connection with activities conducted through the App (the **"Brand License"**).

Users may not:

- sublicense, transfer, or assign the Brand License;
- use the KOVA Marks in a misleading or confusing manner;
- alter, modify, or create derivative works from the KOVA Marks;
- attempt to register or claim ownership of any KOVA Marks;
- challenge or oppose KOVA's use or registration of its Marks;
- use the KOVA Marks in a way that may dilute or harm their distinctiveness; or
- use the KOVA Marks outside guidelines provided by KOVA.

KOVA may revoke permission to use the KOVA Marks at any time in its sole discretion. Any unauthorized use of the KOVA Marks may result in immediate termination of this Agreement and may constitute a violation of applicable law.

8. Information You Submit

1. When using the KOVA App or KOVA Network, you will submit information pertaining to yourself to **KOVA Group, Inc.** ("Company") and to other Users. You consent to Company's use of such information, and to its use by other Users, for the purpose of enabling and facilitating Transactions, Prearranged Rides, and all related services available through the KOVA App or KOVA Network. All disclosed information under this Agreement will be used as described in, and in accordance with, the **Privacy Policy** section of this Agreement.

2. You agree to provide accurate, current, and complete information to Company and to other Users when using the KOVA App or KOVA Network. You are solely responsible for the information you provide, as well as for your use of any information you may receive from other Users.
3. You retain ownership of any information, content, or materials you submit through the KOVA App or KOVA Network, including any intellectual property rights associated therewith. Nothing in this Agreement shall be construed as an assignment of such rights to Company.
4. To enable Company to provide the services made available through the KOVA App and KOVA Network, you agree to grant Company a **non-exclusive, worldwide, perpetual, sub-licensable, irrevocable, royalty-free, and transferable license** to use, copy, transmit, store, reproduce, distribute, and display the information you submit, solely for purposes related to operating, improving, and providing the KOVA App, the KOVA Network, and related services.

9. Confidential Information

1. You agree not to use any proprietary or confidential information related to Company's business, or any information about another User made available to you through your use of the KOVA App or KOVA Network ("Confidential Information"), except (i) as permitted under this Agreement, or (ii) as necessary for your legitimate use of the KOVA App or KOVA Network pursuant to this Agreement.
2. You shall not disclose any Confidential Information to any third party, and you shall not store, record, or reproduce any Confidential Information obtained from the KOVA App or KOVA Network except as necessary to use the services as intended.
3. You understand that any violation of this Section may constitute a breach of applicable privacy, consumer protection, or data security laws and may subject you to civil or criminal liability.
4. Notwithstanding the above, you will not be liable to Company for the disclosure of Confidential Information to the extent you can demonstrate that such information:
 - a. was publicly available at the time it was disclosed by Company, or entered the public domain through no fault of yours;

- b. was known to you, without restriction, prior to disclosure by Company;
- c. becomes known to you, without restriction, from a third party who did not acquire or disclose such information in breach of any legal obligation to Company; or
- d. is disclosed pursuant to a valid court order or other legal requirement; provided, however, that you promptly notify Company of such order to allow Company an opportunity to seek a protective order or other remedy to prevent or limit such disclosure.

10. Prohibited Activities

No User may, when using the KOVA App, the KOVA Network, or while logged into their User account with KOVA Group, Inc.:

1. **Interfere with Platform Operations.**

Attempt to disrupt, damage, disable, "hack," decompile, reverse engineer, or otherwise tamper with the KOVA App or the KOVA Network; bypass or attempt to bypass any security or authentication measures; manipulate or alter data transmitted through the platform (including masking or falsifying its origin); or frame, mirror, or reproduce any portion of the KOVA App or KOVA Network.

2. **Infringe Intellectual Property Rights.**

Use the KOVA App or KOVA Network in any manner that violates or misappropriates the intellectual property rights of KOVA Group, Inc. or any third party.

3. **Violate Laws or Engage in Harmful Conduct.**

Use the KOVA App or KOVA Network to engage in unlawful, fraudulent, abusive, harassing, obscene, or otherwise inappropriate behavior.

4. **Engage in Misrepresentation or Harassment.**

Threaten, intimidate, stalk, or harass any individual; impersonate any person or entity; or use false, misleading, or deceptive information to identify yourself.

5. **Misuse the Platform.**

Access, use, or attempt to use the KOVA App or KOVA Network in ways not authorized by this Agreement, or in ways that interfere with the normal

operation of the platform or the services available through it.

6. Scrape or Harvest Data.

Use bots, spiders, scrapers, search engine technologies, automated scripts, or any other process to extract, "data mine," harvest, copy, reproduce, store, or compile information from the KOVA App, the KOVA Network, or any User account, except to the extent expressly authorized by KOVA Group, Inc.

7. Assist or Encourage Prohibited Actions.

Direct, encourage, enable, or assist any third party in performing any activity prohibited under this Section.

11. Warranty Disclaimer

1. GENERAL DISCLAIMER.

WITH RESPECT TO THE KOVA APP, THE KOVA NETWORK, AND ANY INFORMATION OR CONTENT TRANSMITTED THROUGH THEM, KOVA GROUP, INC. EXPRESSLY DISCLAIMS ALL WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, OR STATUTORY. THIS INCLUDES, WITHOUT LIMITATION, ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. THE KOVA APP AND THE KOVA NETWORK ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, AND YOU USE THEM ENTIRELY AT YOUR OWN RISK. KOVA GROUP, INC. DOES NOT WARRANT THAT THE KOVA APP OR THE KOVA NETWORK WILL OPERATE WITHOUT INTERRUPTION OR BE AVAILABLE AT ALL TIMES. ALTHOUGH KOVA USES COMMERCIALY REASONABLE EFFORTS TO VERIFY USERS, KOVA MAKES NO REPRESENTATION OR WARRANTY REGARDING THE TRUE IDENTITY OF ANY USER.

2. ACCURACY OF INFORMATION.

KOVA GROUP, INC. MAKES NO WARRANTY THAT ANY INFORMATION, DATA, OR CONTENT AVAILABLE THROUGH THE KOVA APP OR THE KOVA NETWORK IS ACCURATE, RELIABLE, COMPLETE, CURRENT, OR FREE OF ERRORS. THIS INCLUDES, WITHOUT LIMITATION, INFORMATION PROVIDED BY USERS, DESCRIPTIONS OF SERVICES OR OFFERINGS, LOCATION DATA, USER RATINGS, AND ANY OTHER USER-GENERATED OR PLATFORM-GENERATED CONTENT.

3. USER PERFORMANCE AND CONDUCT.

KOVA GROUP, INC. MAKES NO WARRANTY REGARDING THE QUALITY, SAFETY, PERFORMANCE, ABILITY, OR LEGAL COMPLIANCE OF ANY USER YOU MAY CONNECT WITH THROUGH THE KOVA APP OR THE KOVA NETWORK. ALL INTERACTIONS, TRANSACTIONS, AND ENGAGEMENTS WITH OTHER USERS ARE AT YOUR OWN RISK.

4. ACCOUNT SECURITY.

YOU ARE SOLELY RESPONSIBLE FOR MAINTAINING THE SECURITY OF YOUR USER ACCOUNT. KOVA GROUP, INC. DISCLAIMS ALL LIABILITY ARISING FROM UNAUTHORIZED ACCESS TO OR USE OF YOUR ACCOUNT, WHETHER RESULTING FROM YOUR ACTIONS, NEGLIGENCE, OR FAILURE TO SAFEGUARD YOUR CREDENTIALS.

12. Limitation of Liability

1. GENERAL LIMITATION OF LIABILITY.

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, KOVA GROUP, INC., ITS PARENT ENTITY, SUBSIDIARIES, AFFILIATES, SUCCESSORS, ASSIGNS, AND EACH OF THEIR RESPECTIVE OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, AND SHAREHOLDERS, SHALL NOT BE LIABLE TO YOU FOR ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, PUNITIVE, OR CONSEQUENTIAL DAMAGES OF ANY KIND. THIS INCLUDES, WITHOUT LIMITATION, DAMAGES ARISING FROM OR RELATED TO:

- YOUR USE OF, OR INABILITY TO USE, THE KOVA APP OR THE KOVA NETWORK;
- ANY SERVICES OR INTERACTIONS FACILITATED THROUGH THE PLATFORM;
- ACTIONS, ERRORS, MISCONDUCT, OR OMISSIONS OF OTHER USERS;
- SECURITY INCIDENTS OR UNAUTHORIZED ACCESS TO COMPANY SYSTEMS; OR
- ANY THIRD-PARTY GOODS, SERVICES, OR INFORMATION AVAILABLE THROUGH THE PLATFORM.

SOME JURISDICTIONS DO NOT ALLOW LIMITATIONS ON CERTAIN KINDS OF DAMAGES. IF THOSE LAWS APPLY, SOME OF THE ABOVE

LIMITATIONS MAY NOT APPLY TO YOU.

2. DATA & DEVICE CHARGES.

KOVA GROUP, INC. IS NOT RESPONSIBLE FOR ANY DATA FEES, ROAMING COSTS, TEXT MESSAGE CHARGES, DEVICE COSTS, OR OTHER EXPENSES ARISING FROM YOUR USE OF THE KOVA APP OR KOVA NETWORK ON YOUR MOBILE DEVICE OR COMPUTER.

3. CONDUCT OF USERS.

KOVA GROUP, INC. IS NOT RESPONSIBLE FOR, AND DISCLAIMS ALL LIABILITY ARISING FROM, THE ACTIONS, BEHAVIORS, DECISIONS, OR STATEMENTS OF ANY USER. YOU ARE SOLELY RESPONSIBLE FOR YOUR INTERACTIONS WITH OTHER USERS.

4. MERCHANDISE AND SERVICES BETWEEN USERS.

KOVA GROUP, INC. DOES NOT GUARANTEE, WARRANT, OR ASSUME RESPONSIBILITY FOR THE QUALITY, SAFETY, LEGALITY, CONDITION, OR SUITABILITY OF ANY GOODS OR SERVICES BOUGHT, SOLD, OR EXCHANGED BETWEEN USERS.

5. LOST PERSONAL BELONGINGS.

KOVA GROUP, INC. IS NOT RESPONSIBLE OR LIABLE FOR ANY PERSONAL ITEMS LOST, DAMAGED, OR LEFT BEHIND DURING OR IN CONNECTION WITH ANY RIDE OR USER INTERACTION.

6. CRIMINAL OR HARMFUL ACTS BY USERS.

KOVA GROUP, INC. IS NOT RESPONSIBLE OR LIABLE—INCLUDING UNDER ANY THEORY OF VICARIOUS LIABILITY—for ANY HARMFUL, NEGLIGENT, FRAUDULENT, ABUSIVE, OR CRIMINAL CONDUCT COMMITTED BY A USER AGAINST ANOTHER USER IN CONNECTION WITH A RIDE OR ANY OTHER USER-TO-USER TRANSACTION. THIS INCLUDES, WITHOUT LIMITATION, PHYSICAL INJURY, PROPERTY DAMAGE, THEFT, FRAUD, OR MISUSE OF PERSONAL INFORMATION.

7. ACTIONS OF DRIVING USERS.

KOVA GROUP, INC. IS NOT RESPONSIBLE OR LIABLE FOR THE DRIVING CONDUCT OF ANY USER PROVIDING TRANSPORTATION THROUGH THE PLATFORM, INCLUDING BUT NOT LIMITED TO NEGLIGENT OPERATION, RECKLESS DRIVING, OPERATING WHILE INTOXICATED, DRIVING WHILE SUSPENDED, OR ANY OTHER TRAFFIC-RELATED OFFENSE. WHILE KOVA

MAY IMPLEMENT USER SCREENING POLICIES, IT DOES NOT CONTROL THE ONGOING CONDUCT OR TRUTHFULNESS OF USERS.

8. INJURIES OR DAMAGES DURING USER INTERACTIONS.

KOVA GROUP, INC. IS NOT LIABLE—including under any theory of vicarious liability—for ANY BODILY INJURIES, PROPERTY DAMAGES, OR OTHER LOSSES INCURRED BY OR CAUSED BY ANY USER OR THIRD PARTY DURING ANY RIDE, MEET-UP, OR TRANSACTION FACILITATED THROUGH THE PLATFORM. KOVA PROVIDES A TECHNOLOGY PLATFORM ONLY AND DOES NOT CONTROL USER ACTIONS.

9. DISCLOSURE OF PERSONAL INFORMATION TO OTHER USERS.

INFORMATION YOU CHOOSE TO SHARE WITH OTHER USERS—including YOUR PROFILE, CONTACT DETAILS, OR ANY OTHER PERSONAL DATA—IS SHARED AT YOUR SOLE RISK. KOVA GROUP, INC. IS NOT RESPONSIBLE FOR, AND DISCLAIMS ALL LIABILITY ARISING FROM, ANY USE OR MISUSE OF SUCH INFORMATION BY OTHER USERS.

13. Indemnification

1. Your Obligation to Indemnify.

You agree to defend, indemnify, and hold harmless KOVA Group, Inc., along with its parent entities, subsidiaries, affiliates, successors, assigns, and all of their respective officers, directors, employees, agents, and shareholders (collectively, the **"Indemnified Parties"**) from any and all claims, demands, causes of action, losses, liabilities, damages, expenses, and costs (including reasonable attorneys' fees) arising out of or relating to your use of the KOVA App or KOVA Network, including but not limited to claims based on:

1. your breach or violation of this Agreement;
2. your violation of any applicable law, regulation, or the rights of any third party arising from your interactions or conduct;
3. any allegation that information, content, or materials you provide to KOVA or transmit through the KOVA App or Network infringe or misappropriate the intellectual property or other rights of any person or entity; and

4. your use, ownership, operation, or maintenance of any vehicle in connection with rides, transportation services, or trip-related activities facilitated through the platform.

2. **Restrictions on Settlements.**

You may not enter into any settlement, compromise, or agreement that imposes any obligation or admission of fault on any Indemnified Party without first obtaining written consent from KOVA Group, Inc.

14. Relationship Between Users and Company

1. **Independent Business Relationship.**

If you use the KOVA Platform to offer transportation services, delivery services, or any other goods or services, you acknowledge that your relationship with **KOVA Group, Inc.** ("Company") is a **commercial, arms-length business relationship**. The Company provides you access to a digital marketplace in exchange for applicable fees, and both parties agree that you and the Company act as **independent contracting parties**.

This Agreement **does not create any employment, joint venture, partnership, or agency relationship** between you and the Company. You have **no authority to bind or represent the Company** in any capacity, and you agree not to present yourself as an employee, agent, or legal representative of the Company.

2. **Users Providing Rides or Transportation Services.**

If you provide Rides (including long-distance trips, airport routes, local rides, inter-campus or inter-city trips), the Company does not control, direct, or manage your conduct or performance. You are solely responsible for the operation, condition, and maintenance of your vehicle, your compliance with applicable laws, and any actions or omissions that occur while using the KOVA Platform.

3. **Users Providing Non-Transportation Services.**

If you offer any service other than rides, the Company likewise does not supervise or control your performance, scheduling, methods, or service standards. All responsibility for the service you provide rests solely with you.

4. **Users Selling Goods.**

If you sell or supply any merchandise or physical goods through the KOVA Platform, the Company does not and will not be deemed to oversee your business practices, product quality, availability, safety, merchantability, or fitness for a particular purpose. You remain solely responsible for the goods you list, the accuracy of your listings, and any obligations arising from your transactions.

15. Fare Guidelines

These Fare Guidelines are intended to help Users understand how pricing works on the KOVA Platform in connection with Prearranged Rides and to allow Users to make informed decisions before requesting or providing transportation services.

1. Fares.

a. General Fare Structure.

Users acknowledge that the KOVA App may calculate and display fares for Prearranged Rides. KOVA does **not** charge Users for merely accessing or using the KOVA App or KOVA Network; charges apply **only** when a User books a Prearranged Ride through the Platform.

Fares, when charged, are generally **non-refundable**, unless otherwise required under applicable law.

b. No Cash or External Payment Methods.

Users are strictly prohibited from requesting, accepting, or offering cash payments for any portion of a Prearranged Ride before, during, or after the trip.

Users are also prohibited from using external card readers, mobile POS systems, or any third-party payment tools to collect payments for a ride.

Any User who is asked to pay or accept such unauthorized payments should promptly notify KOVA.

c. Authorized Payment Channels Only.

All fare payments must be processed **solely through the KOVA App or KOVA Network**. KOVA may rely on approved third-party payment processors to handle fare collection, settlements, or transfers.

d. No Additional Charges for Disability-Related Needs.

In accordance with KOVA's Accessibility and Nondiscrimination Policy, the Company will not permit any extra fees, surcharges, or penalties to be imposed on Users with disabilities for a Prearranged Ride.

e. Tips.

Users may choose to leave an optional gratuity to a Driver upon completion of a Prearranged Ride. Tips are voluntary, paid separately from the fare, and are fully passed through to the Driver.

2. Estimated and Actual Fare Calculations via the KOVA App

a. Display of Estimated Fare.

Before confirming a Prearranged Ride, the KOVA App will show the User an estimated fare. The User may then decide whether to request the Ride after reviewing that estimate.

This estimate reflects the pricing parameters active on the Platform at the time of the request.

Because KOVA facilitates peer-to-peer transportation—and because ride costs may fluctuate with factors such as fuel prices, driver operating costs, and local market conditions—both estimated and actual fares are generated through an automated system available to both Riders and Drivers.

b. How Fares Are Calculated.

The KOVA App calculates both estimated and actual fares based on the pick-up point and intended destination submitted by the User.

Estimated fares may vary depending on factors such as the time of day, demand, and regional fuel prices at the moment the ride is requested.

Actual fares may differ based on the real-time duration and distance traveled during the Prearranged Ride.

c. Difference Between Estimated and Actual Fare.

The actual fare charged may be higher or lower than the initial estimate.

Additionally, if the Rider modifies the drop-off location or route during the trip, the fare may adjust to reflect the updated ride details.

3. Electronic Receipts

a. Receipt Delivery.

After each Prearranged Ride is completed, KOVA will issue an electronic receipt to all Users involved in the trip. Receipts will be accessible through the KOVA App and may also be delivered via other electronic formats.

b. Information Included in Receipts.

Each electronic receipt will generally include:

1. an itemized breakdown of the fare associated with the Prearranged Ride (if applicable);
2. the pick-up and destination locations; and
3. the total time and distance traveled during the Prearranged Ride.

4. Promotions, Referrals, and Coupons

KOVA may periodically provide digital coupons or promotional credits in connection with marketing campaigns, limited-time promotions, or referral programs.

These promotional items:

- have no cash value,
- cannot be sold or transferred, and
- may only be redeemed within the KOVA App or KOVA Network.

Unless explicitly stated otherwise in writing, promotional credits and coupons **may not be combined** for use on the same Prearranged Ride.

16. Fee Guidelines

These Guidelines explain how fees and payment processing work for non-transportation Transactions involving services or merchandise offered by Users through the KOVA App, so that Users may make informed decisions before purchasing from other Users.

1. Transactions and Fees

1. Fees Charged to Selling Users.

Users understand and acknowledge that KOVA may charge fees to the User offering services or merchandise, calculated as a percentage or fixed amount based on the total value of a Transaction.

KOVA does not charge Users simply for accessing or using the KOVA App or KOVA Network; fees apply only when a Transaction is completed through the Platform.

All fees are non-refundable unless required by applicable law.

2. No Cash or Direct Payment Methods.

Users may not request or accept cash payments for any Transaction at any point—before, during, or after the Transaction.

Users are likewise prohibited from using external payment devices or mobile point-of-sale hardware to request or accept credit or debit payments outside of the KOVA App.

Any User who is approached with a request for off-platform payment must promptly report the incident to KOVA Group, Inc.

3. Payments Must Be Processed Through the App.

All Transaction payments must occur exclusively within the KOVA App or KOVA Network. KOVA may utilize a third-party payment provider to process payments securely.

4. Voluntary Tips.

For service-based Transactions, Users may choose to provide an optional tip to the service-providing User once the Transaction is completed.

Tips are separate from the base value of the Transaction and are paid in addition to any applicable fees or charges.

2. Electronic Receipts

1. Delivery of Receipts.

After a Transaction is finalized, KOVA will issue an electronic receipt to all participating Users. Receipts will be accessible through the KOVA App and may be delivered by other electronic means as determined by the Company.

2. Receipt Contents.

Each electronic receipt will generally include:

1. an itemized listing of the total purchase value of the Transaction;
2. a description of the merchandise or services purchased; and
3. the final amount paid, including any voluntary tip.

17. Zero Tolerance Policy Regarding Drugs and Alcohol

KOVA maintains a strict zero-tolerance policy regarding the use of alcohol or drugs for all Users providing transportation services ("Driving Users"). All Driving Users must agree to comply with this Policy both **before and while using the KOVA App or KOVA Network**, to ensure the safety of all Users.

1. Responsibilities of Driving Users

1. Safe Operation.

Driving Users are responsible for operating their vehicles safely and in full compliance with all applicable laws and regulations governing road use.

2. Prohibition on Drugs and Alcohol.

KOVA strictly prohibits any Driving User from using alcohol, illegal drugs, or controlled substances while operating a vehicle for services booked through the KOVA App or KOVA Network. This includes driving with open containers of alcohol or drugs and operating a vehicle while impaired by any substance.

2. Enforcement

KOVA reserves the right, at its sole discretion, to suspend or deactivate access to the KOVA App or KOVA Network for any Driving User who:

1. is suspected of consuming alcohol or drugs, or is suspected of being impaired by such substances;
2. is reported for using alcohol or drugs, being impaired while driving, or having open containers of alcohol or drugs in their vehicle; or
3. operates a vehicle, or is suspected of having operated a vehicle, under the influence of alcohol or drugs while offering services through the KOVA

Platform.

3. Reporting Violations

1. Immediate Action by Riders.

Any Rider who suspects that a Driving User is under the influence of alcohol or drugs should **immediately request that the vehicle stop** and exit the vehicle at the **safest and earliest possible location**. Safety is the top priority.

2. Notification to Authorities and KOVA.

After exiting the vehicle, the Rider should:

1. **Contact emergency services** by calling "911" (or the equivalent local emergency number); and
2. **Report the incident to KOVA** via the KOVA App. Options for reporting include:
 - Using the "Direct Call" button in the KOVA App to contact KOVA staff;
 - Using the "Report Driver" button in the KOVA App to submit a structured report; or
 - Sending an email directly to hello@kovagroup.com.

4. Investigation of Violations

1. Investigation of Reports.

KOVA will investigate all credible reports from Riders or other Users who reasonably suspect that a Driving User was operating a vehicle under the influence of alcohol or drugs while providing services via the KOVA Platform.

2. Temporary Suspension.

During any investigation, the Driving User suspected of violating this policy will have their access to the KOVA App and KOVA Network **temporarily suspended** until the investigation concludes.

3. Consequences of Confirmed Violations.

If KOVA concludes that a Driving User violated the Zero Tolerance Policy, the Driving User will be **permanently banned** from accessing or using the

KOVA App or KOVA Network.

5. Recordkeeping

KOVA will retain all records relating to reports of alleged violations and the resulting investigations for a minimum of **two (2) years** from the date the report was received. Records will include all documentation, communications, and outcomes of the investigation.

18. Motor Vehicle Compliance Requirements

All Driving Users who use the KOVA App or KOVA Network must agree to comply with these **Motor Vehicle Compliance Requirements ("Compliance Requirements")** before and while providing services through the KOVA Platform. Compliance with these requirements ensures the safety of all Users and the integrity of KOVA services.

1. Responsibilities of Driving Users

1. Safe Operation.

Driving Users must operate their vehicles safely and in full compliance with all applicable laws, regulations, and roadway rules. The safety of any passengers transported through the KOVA App or KOVA Network must be the highest priority.

2. Prohibited Conduct While Driving.

While using the KOVA App or KOVA Network, Driving Users may **not**:

1. engage in unsafe, reckless, or negligent behavior while providing rides;
2. operate a vehicle that is unsafe or mechanically unfit to drive;
3. allow unauthorized persons to ride in the vehicle while providing KOVA services;
4. transport more passengers than can be safely seated;
5. operate as a taxi, common carrier, contract carrier, or motor carrier outside the KOVA Platform; or
6. accept street hails or solicit passengers outside the KOVA App.

3. Requirements for Driving Users and Vehicles.

Every Driving User must ensure that:

1. they **own or have the legal right to operate** the vehicle used for KOVA services;
2. they consent to KOVA obtaining relevant information, including criminal and driving history, and provide any necessary authorizations for such verification;
3. they hold a valid driver's license;
4. they are medically fit to operate their vehicle safely;
5. they provide KOVA rides only in the vehicle registered with KOVA;
6. the vehicle has valid state registration and license plates; and
7. the vehicle, including all associated equipment, meets the following standards:
 - a. complies with all applicable laws and regulations regarding vehicle operation, maintenance, registration, and safety;
 - b. is in good working condition; and
 - c. has been serviced or repaired according to manufacturer guidelines, including completion of all safety recalls.

2. Reporting Violations of Compliance Requirements

1. Immediate Action by Riders.

Any User who suspects that a Driving User is violating these Compliance Requirements may **immediately request that the vehicle stop** and safely exit the vehicle. Users should exit at the **earliest and safest location** after making such a request.

2. Notification to KOVA.

Upon exiting the vehicle, the User should:

1. report the alleged violation through the KOVA App using available reporting tools; and
2. if the User believes the alleged violation constitutes an emergency, **call "911"** (or the equivalent local emergency number).

3. Enforcement and Investigation

1. Investigation of Reports.

KOVA will investigate all credible reports from Users or other persons who reasonably suspect that a Driving User violated these Compliance Requirements. During any investigation, KOVA **may temporarily suspend** the suspected Driving User's access to the KOVA App and KOVA Network.

2. Consequences of Confirmed Violations.

If KOVA concludes that a Driving User has violated these Compliance Requirements, KOVA reserves the right to **permanently ban** the Driving User from using the KOVA App or KOVA Network.

3. Discretionary Suspension.

KOVA reserves the right, at its sole discretion, to **suspend access** to the KOVA App or KOVA Network for any Driving User who is reported or suspected of violating these Compliance Requirements, **even before the conclusion of an investigation**.

4. Recordkeeping

KOVA will retain all records related to reports of alleged violations and the resulting investigations for a minimum of **two (2) years** from the date the report was received. Records include documentation, communications, and the outcomes of the investigation.

19. Motor Vehicle Insurance Requirements

All Driving Users who use the KOVA App or KOVA Network must agree to comply with these **Motor Vehicle Insurance Requirements ("Insurance Requirements")** before and while providing services through the KOVA Platform. Compliance with these requirements ensures the safety of all Users and the integrity of KOVA services.

1. Disclosure Regarding Driving User's Insurance

1. Review of Insurance Coverage.

Before using the KOVA App or KOVA Network, each Driving User should **confirm whether their personal motor vehicle insurance policy** (the "Driving User's Policy") provides coverage while the Driving User is using

the KOVA App or KOVA Network, or providing Prearranged Rides to any User.

2. Responsibility for Coverage.

Driving Users are solely responsible for determining whether their Driving User's Policy provides coverage while using the KOVA Platform. **Driving Users may not provide rides through the KOVA App or Network if their policy does not provide coverage or does not meet the minimum coverage requirements outlined in these Insurance Requirements.** This ensures the safety of all Users participating in KOVA services.

3. Qualified Insurance Providers.

The Driving User's Policy must be issued by an insurance company authorized to conduct insurance business in the states where the KOVA App or KOVA Network operates.

4. Proof of Insurance.

KOVA will require proof of the Driving User's Policy before a Driving User is authorized to provide rides through the KOVA App or KOVA Network.

2. Minimum Coverage Requirements

If a Driving User relies on their own Driving User's Policy while providing KOVA services, the policy must provide **minimum coverage** as follows:

1. Prearranged Rides Coverage.

While providing Prearranged Rides to Users, the policy must cover **at least \$250,000 per incident** for:

- Death;
- Bodily injury; and
- Property damage.

2. Use of KOVA App or Network Coverage.

While using the KOVA App or KOVA Network, the policy must provide:

1. **\$50,000 per person** for death and bodily injury;
2. **\$100,000 per incident** for death and bodily injury; and
3. **\$25,000 per incident** for property damage.

3. Driving User Responsibilities

1. Proof of Insurance.

Driving Users must **carry proof of their Driving User's Policy** in the vehicle at all times when using the KOVA App or Network, or when providing Prearranged Rides.

2. Accidents and Reporting.

In the event of an accident occurring while using the KOVA App or Network, or while providing a Prearranged Ride:

1. Driving Users must provide, upon request, to all directly interested parties, insurance companies, and law enforcement officers:
 - a. Proof of Driving User's Policy; and
 - b. A statement clarifying whether, at the time of the accident:
 - i. the Driving User was using the KOVA App or Network; and
 - ii. the Driving User was providing a Prearranged Ride.

4. Insurance Coverage by Company

1. No Coverage Provided by KOVA.

If the Driving User's Policy lapses or does not provide coverage while using the KOVA App or Network, **KOVA's insurance does not cover the Driving User**. The Driving User is **not a contractor or employee** of KOVA, and KOVA shall not defend any claims against the Driving User for incidents occurring while using the KOVA Platform.

2. Cooperation in Claims.

During an insurance claim investigation, KOVA will cooperate to facilitate the exchange of information with the parties involved, including:

1. The precise times the Driving User used the KOVA App or Network during the **12-hour period immediately preceding and following the incident**; and
2. Disclosure of applicable insurance coverage, exclusions, and limitations, including policies issued or maintained by a party that provide the coverage required under these Insurance Requirements and applicable law.

20. Professional Insurance Requirements

All Users providing professional services that, by law, require insurance coverage must comply with these **Professional Insurance Requirements** ("**Professional Insurance Requirements**") before and while providing services through the KOVA App or KOVA Network. Compliance ensures the safety and protection of all Users and maintains the integrity of KOVA services.

1. Disclosure Regarding User's Insurance

1. Review of Professional Insurance Coverage.

Before using the KOVA App or KOVA Network, each User providing professional services must **determine whether their personal professional insurance policy** (the "Professional User's Policy") provides coverage while the User is using the KOVA App or Network or while providing professional services to any User.

2. Responsibility for Coverage.

Users are solely responsible for ensuring that their Professional User's Policy provides coverage while using the KOVA App or Network. **Users may not provide professional services through the KOVA App or Network if their policy does not provide coverage or does not meet the minimum coverage amounts required by law.**

3. Qualified Insurance Providers.

The Professional User's Policy must be issued by an insurance company authorized to conduct insurance business in the states where the KOVA App or KOVA Network operates.

4. Proof of Insurance.

KOVA will require proof of the Professional User's Policy before a User is authorized to provide professional services through the KOVA App or Network.

21. Nondiscrimination and Accessibility Policy

All Users providing services or merchandise for sale, including Prearranged Rides, who use the KOVA App or KOVA Network must comply with this **Nondiscrimination and Accessibility Policy** before and while using the KOVA App or Network. Compliance ensures equitable access and safety for all Users.

1. No Discrimination

1. Users providing services or selling merchandise may **not refuse services or refuse to sell merchandise** to any User, or potential User, based on:
 - a. race;
 - b. national origin;
 - c. religion;
 - d. sex, gender, or gender identity;
 - e. age;
 - f. sexual orientation;
 - g. marital status;
 - h. medical condition, or physical or mental disability (including Users requiring service animals or mobility devices, such as wheelchairs); or
 - i. any other characteristic protected under applicable federal or state law.
2. KOVA reserves the right, at its sole discretion, to **suspend access** to the KOVA App or Network for any User found to have violated this Policy.

2. No Additional Fees or Charges

1. KOVA will **not impose additional fees or modify fares** for Users with a medical condition, physical disability, or mental disability.
2. Users providing services may **not impose or request any extra fees** from such Users on the basis of their medical condition or disability.

3. Wheelchair Accessibility

1. Users requesting a Prearranged Ride may indicate whether they require a **wheelchair-accessible vehicle**. If KOVA cannot locate an available accessible vehicle, the User will be notified of an alternate accessible transportation option.
2. Users must transport passengers with **wheelchairs or other foldable mobility devices** (walkers, canes, crutches) if the device can be safely secured without interfering with safe operation of the vehicle.
3. If a User cannot safely secure the wheelchair or mobility device, the Prearranged Ride may be **canceled**, and the User must **immediately notify**

KOVA.

4. Upon request, Users shall **assist, to the best of their physical ability**, with the storage of wheelchairs in the vehicle.

4. Service Animals

1. **Service animals** are animals trained to assist persons with disabilities. Users must provide transportation for service animals **in compliance with applicable laws**.
2. Users may **not refuse services** to passengers with service animals. KOVA reserves the right, at its sole discretion, to suspend access for Users found to refuse such passengers.
3. Service animals may **not always be identified** with a tag or vest. Users may ask for confirmation that an animal is a service animal. Users may refuse services for animals that **are not service animals**.

22. Records Maintenance Guidelines

KOVA maintains records to ensure accountability, safety, and regulatory compliance. All Users who access the KOVA App or KOVA Network agree to these Records Maintenance Guidelines.

1. Records under the Company's Zero Tolerance Policy

1. As set forth in KOVA's **Zero Tolerance Policy Regarding Drug and Alcohol Use** (the "Zero Tolerance Policy"), KOVA will retain all records related to:
 - a. reports of alleged violations of the Zero Tolerance Policy; and
 - b. investigations conducted by KOVA regarding such alleged violations.
2. These records will be retained for a minimum of **two (2) years** from the date KOVA receives the report of the alleged violation.

2. Records Related to Trips and Transactions

1. KOVA shall retain all records related to any Trip or Transaction conducted through the KOVA App or KOVA Network for a minimum of **one (1) year** after the date of the Trip or Transaction.

3. Records Related to Prior and Former Users

1. KOVA shall retain all records related to any User providing services or merchandise for sale, including any driving User, for a minimum of **one (1) year** after the date such User ceases to use the KOVA App or Network, whether voluntarily or involuntarily.

4. Information Comprised by Records

KOVA takes a broad view of "records," which may include, but is not limited to, the following information:

1. a copy of a driving User's driving record;
2. the date and time of a request for a Trip or Transaction;
3. the identity of the User who used the KOVA App or Network to reach agreement regarding the Trip or Transaction;
4. the location at which the User requested the Trip;
5. the elapsed time between the request for a Trip and the arrival of the driving User;
6. the type of vehicle, and associated information such as license plate number, driven by a driving User;
7. the duration of a Trip;
8. the destination of a Trip;
9. any fare paid by a User for a Trip, or the sale value paid by a User for a Transaction;
10. the means of payment used by a User for a Trip or Transaction, including Prearranged Ride fares;
11. communications between Users made through the KOVA App or Network in furtherance of a Trip or Transaction;
12. the dates and times during which a User used the KOVA App or Network;
13. any rating of a selling User, including driving Users, submitted by a User, or any rating of a User submitted by a selling User, including driving Users; and
14. any reports, complaints, or feedback submitted by a User to KOVA pertaining to a Trip or Transaction.

23. Term and Termination

1. Effectiveness and Duration.

This Agreement becomes effective upon your use of the KOVA App or KOVA Network and continues until terminated by either you or KOVA. You may terminate this Agreement at any time by providing electronic notice to KOVA, including notice submitted through the KOVA App. This Agreement may also be terminated by either party upon the other party's **material breach** of any provision herein.

2. Immediate Termination by KOVA.

KOVA may immediately terminate this Agreement and deactivate your account if:

1. you use the App for driving and cease to qualify as a driving User;
2. you or your vehicle fail to qualify under applicable law, regulation, or insurance requirements to provide services through the KOVA App or KOVA Network;
3. you use the App to sell services and either (i) cease to be legally authorized to offer such services, or (ii) violate the terms of this Agreement;
4. you use the App to sell merchandise and either violate this Agreement or applicable law; or
5. you use the App as a purchasing or passenger User and violate this Agreement, including engaging in unlawful conduct that interferes with KOVA, the services or merchandise provided, or harms other Users.

3. Notice and Cure Period.

KOVA will contact any User it reasonably believes has breached this Agreement. At KOVA's discretion, a User may be provided a **cure period** to remedy the alleged breach to KOVA's satisfaction.

4. Survival.

The following sections, intended to survive termination or expiration of this Agreement, shall continue in full force and effect:

Sections **1, 3, 7, 8 (regarding your grant of license), 9, 11, 12, 13, 23, 24, 25, and 26.**

24. Miscellaneous

1. Entire Agreement.

This Agreement sets forth the entire understanding and agreement between you and Company with respect to the subject matter hereof and supersedes all prior understandings, agreements, or representations, whether oral or written.

2. Severability.

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the remaining provisions shall remain in full force and effect. In such cases, the invalid or non-binding provision shall be replaced with a valid and enforceable provision that, to the greatest extent possible, achieves the original intent of the invalid provision.

3. Assignment.

You agree that this Agreement, and any rights or obligations herein, may be automatically assigned by Company, in its sole discretion, upon notice to you. You may not assign this Agreement or any rights or obligations under it without prior written consent from Company.

4. Notices.

Except as explicitly stated otherwise, any notice to Company shall be given by certified mail, postage prepaid, return receipt requested, to the address provided on the Company's website at www.kovaconnect.com. Notices to you shall be provided through the Kova App or to the email or physical address you provided during User registration.

5. Headings and Interpretation.

Headings are for convenience only and do not define, limit, or describe the scope of any section. The terms "include," "includes," and "including" shall be construed to mean "without limitation."

6. Non-Waiver.

Failure by either you or Company to act with respect to a breach by the other party does not constitute a waiver of the right to act with respect to subsequent or similar breaches. Any waiver must be made in writing.

7. Limitation on Claims.

Any claim or cause of action you may have against Company must be filed within **two (2) years** of the date the claim or cause of action arose, or within **two (2) years** from the date you reasonably should have known of the occurrence giving rise to the claim, or such claim shall be forever barred.

8. Force Majeure.

Company shall not be deemed in breach of this Agreement for events, circumstances, or causes beyond its reasonable control, including, without limitation: natural disasters; acts of God; labor disputes or stoppages; war; government action; epidemics or pandemics; chemical or biological contamination; strikes; riots; acts of domestic or international terrorism; quarantines; national or regional emergencies; or any other causes beyond Company's reasonable control.

25. Governing Law; Venue.

This Agreement shall be governed by the laws of the State of Indiana, without regard to conflict of law principles. Any disputes arising under this Agreement shall be brought exclusively in the state or federal courts located in **Tippecanoe County, Indiana**, and you consent to the personal jurisdiction of such courts.

26. KOVA Privacy Policy

This Privacy Policy is incorporated into the Agreement and governs how the Company protects the personal identifying information of Users, including any persons who seek Prearranged Rides through the KOVA App or KOVA Network. "Personal identifying information" refers to information that, when used alone or combined with other relevant data, can identify an individual.

1. Purpose

1. The Company is required to request and collect certain personal identifying information, as well as other information, from both Users prior to granting access to the KOVA App or KOVA Network. This Privacy Policy explains what information the Company collects, why it is collected, and how it is protected.
2. The Company may update this Privacy Policy periodically to reflect updates to the KOVA App, KOVA Network, or applicable privacy laws. Material

updates will be communicated to all Users electronically. Users must agree to the most current version of this Privacy Policy.

3. While the Company commits to protecting collected personal identifying information, Users also have a responsibility to safeguard personal identifying information pertaining to themselves and others ("User Personal Identifying Information").

2. No Users under the Age of Thirteen

1. In compliance with the Children's Online Privacy Protection Act of 1998 ("COPPA"), the Company does not market the KOVA App or KOVA Network to individuals under the age of thirteen (13).
2. The Company will not knowingly collect personal identifying information from any person under the age of thirteen (13).
3. If the Company discovers that personal identifying information has been collected from a person under the age of thirteen (13), the Company will immediately delete such information and terminate access to the KOVA App or KOVA Network for that individual.

3. Information the Company Collects

3.1 Registration Information Provided by Users

1. When a User registers to use the KOVA App or KOVA Network, the Company collects information including, but not limited to:
 - Full name
 - Email address
 - Phone number
 - Date of birth
 - Photograph
2. The Company may also request financial information, such as bank account details or credit/debit card information.
3. Driving Users must additionally provide:
 - Driver's license information, including a photograph of the license
 - Information about the vehicle(s) used for Prearranged Rides

- Proof of vehicle insurance

3.2 Information Collected During Use

1. When Users interact with the KOVA App or KOVA Network, the Company collects:
 - Usage data (e.g., trip requests, app interactions)
 - Device information (e.g., device type, operating system, unique device identifiers)
 - Ratings and feedback submitted by Users
 - Communications between Users within the App
2. The Company may also collect location data while the App is in use, including background location tracking, to facilitate Prearranged Rides.
3. During Prearranged Rides, information collected includes:
 - Pickup and drop-off locations
 - Ride date and time
 - Distance and route taken
 - Payment and promotional code usage
 - Communications between Users relating to the ride

3.3 Information from Third-Party Sources

1. The Company may receive information from third parties, such as:
 - Background check services
 - Fraud detection services
 - Insurance verification
2. This information ensures safety, compliance, and reliability of the KOVA App and Network for all Users.

4. How the Company Uses Collected Information

4.1 Provide and Improve the App and Network

Information collected is used to:

1. Verify User identities
2. Maintain and manage accounts
3. Electronically connect Users
4. Transmit pickup and destination locations for Prearranged Rides
5. Track rides in real-time
6. Provide promotions or referral programs
7. Deliver communications between Company and Users
8. Collect feedback and ratings
9. Calculate fares and process payments
10. Test and debug the App and Network
11. Monitor App performance, security, and reliability
12. Develop new products, features, and services

4.2 Maintain Security and Safety

Information is used to:

1. Authenticate and verify Users and prevent fraudulent registrations
2. Promote safe Prearranged Rides and Transactions
3. Verify that driving User vehicles meet legal and safety standards
4. Confirm that Users have proper insurance coverage
5. Investigate alleged violations of Company policies or the Agreement
6. Investigate accidents and related insurance claims
7. Enforce disciplinary action against Users who violate policies

4.3 Provide Customer Support

The Company may use collected information to assist Users with account or service-related inquiries, complaints, or support requests.

4.4 Responding to Legal Requirements

1. The Company may be required to disclose collected information to:
 - Law enforcement agencies

- Regulatory bodies
 - Courts via subpoenas, court orders, or government investigations
2. The Company will comply with such requests while seeking to protect Users' rights and privacy to the extent permitted by law.

5. User Rights and Responsibilities

1. Users are responsible for safeguarding their personal information and login credentials.
2. Users may access, correct, or delete personal information provided to the Company by contacting the Company through the KOVA App or official contact methods.
3. Users must immediately report any suspected unauthorized access or misuse of their account or personal information.

6. Data Retention and Security

1. Collected information is retained only as long as necessary to fulfill the purposes outlined in this Privacy Policy or as required by law.
2. The Company employs industry-standard security measures to protect personal identifying information, including encryption, secure storage, and access controls.

7. How the Company Shares Collected Information

The Company will **not sell any collected information**, including personal identifying information, to third parties. Sharing occurs only as necessary to provide services, ensure safety, comply with law, or facilitate business operations.

7.1 Sharing Between Users

1. **User Information Shared with Users**
 - a. To fulfill Prearranged Rides or Transactions, the Company shares certain User information with other Users. This may include:
 - Pickup location
 - Destination
 - User rating

- Service location for providers
- Merchandise pickup location for buyers
- b. Shared information may include limited User Personal Identifying Information, such as:
 - Name
 - Telephone number
 - Optional profile photograph
- c. Feedback and ratings submitted by Users may be shared after a ride or transaction, with the identity of the submitting User redacted.

2. Driving User Information Shared with Users

- After accepting a Prearranged Ride, the Company will share with the requesting User:
 - Driving User's name and profile photo
 - Driving User's rating
 - Real-time location of the vehicle
 - Vehicle details: make, model, color, and license plate

3. Lost Items

- If a User reports a lost personal item during a Prearranged Ride, the Company will contact the relevant driving User and attempt to recover the item on behalf of the User.

7.2 Sharing with Third-Party Service Providers

The Company may share collected information with third-party service providers for purposes including, but not limited to:

1. Processing driving User registrations and verifying User identities
2. Facilitating the KOVA App and KOVA Network services
3. Enabling Prearranged Rides
4. Processing financial transactions
5. Processing insurance claims
6. Detecting fraud, unsafe behavior, or policy violations

7. Providing access to emergency services
8. Delivering customer service
9. Conducting research and marketing activities

7.3 Legal Reasons

1. The Company may be required to share information with law enforcement or regulatory bodies pursuant to court orders, subpoenas, or government investigations.
2. Information may also be shared to:
 - Protect or defend the Company's rights
 - Investigate alleged violations of Company policies, requirements, or guidelines
 - Comply with permits, licenses, or other legal obligations
 - Exercise or defend legal rights of the Company, Users, or other third parties

8. Links to Third-Party Apps or Websites

1. The KOVA App may contain links or references to third-party websites, products, or services.
2. These third parties may maintain privacy policies that differ from the Company's. The Company is **not responsible** for the privacy practices of these third parties.
3. Users should contact third parties directly regarding questions about their privacy practices.

9. How the Company Stores and Protects Collected Information

1. Retention

- Collected information is retained as long as necessary to provide access to the Kova App and Kova Network.
- Personal identifying information is retained while a User maintains an active account.
- Transactional information related to Prearranged Rides is retained to meet business, tax, legal, and customer service obligations, and to

enforce Company policies.

- Users may request deletion of personal identifying information; however, this requires deletion of their account.

2. Security

- The Company employs reasonable and appropriate security measures, including encryption, secure storage, and access controls.
- No security system is completely secure, and the Company makes no guarantee against unauthorized access.

10. Rights and Choices Regarding Collected Information

1. The Company **will not disclose User Personal Identifying Information** without explicit written consent, except as described in this Privacy Policy.
2. Users may log into their accounts to access, review, and delete personal information.
 - Deleting certain personal information may limit access to the KOVA App or Network.
 - Users seeking deletion may need to close their account and cease using the App.
 - In some cases (e.g., ongoing investigations, fraud, insurance claims), the Company may retain certain information despite deletion requests.

11. Contact Us

Users with questions regarding this Privacy Policy may contact the Company:

- Through the KOVA App, or
- Via email at hello@ridekova.com

KOVA PRIVACY POLICY

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